

Accessibility and Accommodation

by Sophia



WHAT'S COVERED

In this lesson, you will learn about the ethical obligations to people with disabilities. Specifically, this lesson will cover:

1. Protections for People with Disabilities



BEFORE YOU START

Remember the differences between equality and equity that were identified in the tutorial at the beginning of this challenge. This particularly applies to accommodations for people with disabilities. In the United States, the **Americans with Disabilities Act (ADA)**, passed in 1990, stipulates that a person has a disability if he or she has a physical or mental impairment that reduces participation in “a major life activity,” such as work. An employer may not discriminate in offering employment to an individual who is diagnosed as

having such a disability, provided they can do the job. Furthermore, if employment is offered, the employer is obliged to make **reasonable accommodations** to enable them to carry out normal job tasks. Making reasonable accommodations may include altering the physical workplace so it is readily accessible, restructuring a job, providing or modifying equipment or devices, or offering part-time or modified work schedules. Other accommodations could include providing readers, interpreters, or other necessary forms of assistance, such as allowing an assistive animal. The ADA also prohibits discriminating against individuals with disabilities in providing access to government services, public accommodations, transportation, telecommunications, and other essential services.

Access and accommodation for employees with physical or mental disabilities are good for business because they expand the potential pool of good workers. It is also ethical to have compassion for those who want to work and be contributing members of society. This principle holds for customers as well as employees. Recognizing the need for protection in this area, the federal government has enacted several laws to provide it. The Disability Rights Division of the U.S. Department of Justice lists ten different federal laws protecting people with disabilities, including not only the ADA but also laws such as the Rehabilitation Act, the Air Carrier Access Act, and the Architectural Barriers Act.



LEARN MORE

The EEOC is the primary federal agency responsible for enforcing the ADA (as well as Title VII of the Civil Rights Act of 1964, mentioned earlier in the chapter). It hears complaints, tries to settle cases through administrative action, and, if cases cannot be settled, works with the Department of Justice to file lawsuits against violators. You can find out more about the law and its enforcement at [eeoc.gov](https://www.eeoc.gov).

A key part of complying with the law is understanding and applying the concept of *reasonableness*: “An employer is required to provide a reasonable accommodation to a qualified applicant or employee with a disability unless the employer can show that the accommodation would be an **undue hardship**—that is, that it would require significant difficulty or expense.”

The law does not require an employee to refer to the ADA or to “disability” or “reasonable accommodation” when requesting some type of assistance. Managers need to be able to recognize the variety of ways in which a request for an accommodation is communicated. For example, an employee might not specifically say, “I need a reasonable accommodation for my disability,” but rather, “I’m having a hard time getting to work on time because of the medical treatments I’m undergoing.” This example demonstrates a challenge employers may face under the ADA in properly identifying requests for accommodation.

IN CONTEXT

Managers are usually sticklers about attendance, but Verizon learned an expensive lesson about its mandatory attendance policies in a 2011 class action lawsuit by employees and the EEOC. The suit asserted that Verizon denied reasonable accommodations to several hundred employees, disciplining or firing them for missing too many days of work and refusing to make exceptions for those whose absences were caused by their disabilities. According to the EEOC, Verizon violated the ADA because its no-fault attendance policy was an inflexible and “unreasonable” one-size-fits-all rule.

The EEOC required Verizon to pay \$20 million to settle the suit, the largest single disability discrimination settlement in the agency’s history. The settlement also forced Verizon to change its attendance policy to include reasonable accommodations for persons with disabilities. A third requirement was that Verizon provide regular training on ADA requirements to all managers



TERMS TO KNOW

Americans with Disabilities Act

The 1990 law that makes it illegal to discriminate against people in employment because of disability, and mandates that an employer must make reasonable accommodations to support workers who need them.

Reasonable Accommodations

The requirement that workplaces provide support to help people with disabilities do their jobs, such as ramps and elevators so people in wheelchairs can access the work environment, and assistive technology for people with other disabilities.

Undue Hardship

The situation where the accommodations for a person with a disability would be too expensive or difficult to implement.

2. Standard Accommodation

One of the most important considerations for making a workplace accessible is physical accessibility. This includes ensuring that the workplace is wheelchair accessible, with features such as ramps and wide doorways. It also includes ensuring that all workstations, break rooms, and restrooms are accessible to people with disabilities. This may require modifications such as lowered sinks and counters, accessible seating, and adjustable workstations. These accommodations not only help employees with disabilities perform their job duties, but also ensure that they can move around the workplace safely and comfortably.

Another important accommodation is assistive technology. Many employees with disabilities rely on technology to help them perform their job duties. This may include screen readers or magnifiers for employees with visual impairments, voice recognition software for employees with mobility impairments, or adaptive keyboards and mice for employees with dexterity impairments. Providing these tools can help employees with disabilities work more efficiently and effectively.

Flexible work arrangements can also be an important accommodation for employees with disabilities. This may include telecommuting options or flexible scheduling. These accommodations can help employees manage their disability-related needs while still meeting the demands of their job. For example, an employee with a chronic illness may need to work from home on days when they are experiencing symptoms, or an employee with a mobility impairment may need to avoid rush hour traffic in order to avoid accessibility barriers on public transportation. However, in some types of positions, such as a cashier where there is a requirement to be present, this might not be allowed because it would cause undue hardship on the organization. However, a reasonable accommodation might be giving the clerk a stool so they don't have to stand while serving customers.

Technological accommodations are becoming increasingly important in the workplace. Changes made to technology or software to enable employees with disabilities to perform their job duties are an important part of promoting equity and inclusion in the workplace. From providing screen readers or voice recognition software for employees with visual or physical impairments, to providing closed captioning or transcripts for employees who are deaf or hard of hearing, there are many options now available to provide technological accommodations. An ethical company will make room in the budget for such accommodations.

3. Hidden Disabilities

Not all disabilities are evident, yet still require accommodations. For example, you might not know that a colleague has epilepsy, an anxiety disorder, or asthma. Mental health conditions, chronic illnesses, and neurodiversity are all considered disabilities and are thus protected by the ADA. Accommodations for these **hidden disabilities** (ones not obvious to others) often involve simple flexibility more than changes to the physical environment or assistive technology. However, accommodations may be harder for people with invisible disabilities to receive.

➞ **EXAMPLE** A person with chronic fatigue syndrome may need to take short, unexpected absences and work more frequently from home.

Moreover, standard practices and policies may also need to be modified for people with invisible disabilities.

➞ **EXAMPLE** Many autistic people may have trouble maintaining eye contact or observing other social norms. If these behaviors are weighed too heavily against applicants in a job search, or against employees in evaluations, it is discriminatory, even if unintentional.

Perhaps more difficult than providing this flexibility as a form of accommodation is fostering an environment where people with hidden disabilities are supported. However, other than specifying their need for accommodations, workers with disabilities should not have to provide their complete health history to colleagues. Ethically, a business should provide accommodations *and* protect the person's privacy.

➞ **EXAMPLE** A person with mental health issues needs accommodation in the form of a quiet, independent office, while other colleagues, even those with seniority, do not enjoy this privilege.

This puts an ethical leader in an uncomfortable position where they seem to be playing favorites. But an ethical leader will have earned the trust of their employees, and they will accept their decisions as necessary and equitable. Furthermore, an office manager will have established goodwill by being attentive to everyone's needs. The person with seniority who had hoped for the private office might recall that they were given accommodations or flexibility to meet their own needs and be more understanding.



TERM TO KNOW

Hidden Disabilities

Disabilities not obvious to others, such as epilepsy, anxiety, or asthma.

4. Ethical Considerations

People with disabilities face a range of challenges in the workplace, including discrimination, stigma, and lack of access to resources and opportunities. Ethical leaders recognize that people with disabilities are entitled to the same rights and opportunities as everyone else and take steps to ensure that these rights are protected. Remember that equity is not the same as equality, in that “treating everyone the same” may exclude people with disabilities.

Ethical leadership is crucial in protecting the rights of people with disabilities. Standard accommodations are an essential aspect of protecting the rights of people with disabilities, and involve changes made to the work environment or job duties to enable an employee with a disability to perform the essential functions of their job. Standard accommodations include modifying work hours, providing ergonomic furniture or equipment, or adjusting the physical layout of the workspace. Work accommodations are another important aspect of protecting the rights of people with disabilities, including specific changes made to an individual employee's

job duties to enable them to perform their job. Assigning tasks that match an employee's abilities, providing a job coach or mentor, or adjusting the workload or pace of work all serve as effective examples. Equally important is cultivating a culture of compassion and understanding so other coworkers support these accommodations instead of seeing them as privileges or unearned perks.



An employee with chronic fatigue asks for an accommodation to work from home on days they are unable to work normal hours on site. You grant this request, but soon other workers are complaining that this employee gets to “work at home all the time,” when they cannot.

How can you best explain the reasoning behind this without violating the individual's privacy?



You need only explain that this is an accommodation the worker needs and not a privilege or perk. You should not explain the nature of the disability, but describing it as an accommodation should make it clear to staff that you are not playing favorites. If you have built a culture of mutual respect among staff, and a reputation for fairness, this should be enough with most staff.

Leaders, managers, supervisors, and business leaders need to remember that not all disabilities are clearly visible. People with disabilities often fear rejection from others, particularly employers, because of their challenges and may be hesitant to speak up for themselves. Hidden disabilities are an area where ethical leadership is crucial. Hidden disabilities refer to disabilities that are not immediately visible, such as mental health conditions, learning disabilities, or physical conditions that are not readily apparent. Employees with hidden disabilities often face stigma and discrimination in the workplace, and ethical leaders must take steps to ensure that these employees are treated fairly and with respect.

Ethical considerations are essential when it comes to protecting the rights of people with disabilities in the workplace. Ethical leaders must ensure that all employees are treated with dignity and respect and that their rights are protected, and be aware of the potential for discrimination and take steps to prevent it from occurring.

SUMMARY

Ethical leadership in employment is essential for **protecting the rights of people with disabilities**. This involves going beyond the minimum standards of ethical behavior and creating a culture of respect and fairness in the workplace. **Standard accommodation** such as ergonomic workspaces, flexible work arrangements, and technological accommodations are important tools for ensuring that employees with disabilities can perform their job duties. Ethical leaders must also be aware of **hidden disabilities** and take steps to ensure that employees with these disabilities are treated fairly and with respect. **Ethical considerations** go beyond accommodation to actively creating a positive work environment for all employees, preventing discrimination, and encouraging mutual compassion and understanding.

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**Americans with Disabilities Act**

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Hidden Disabilities

Disabilities such as chronic illness, mental illness, or neurological differences which are not obvious to others but do require accommodation.

Reasonable Accommodations

The requirement that workplaces provide support to help people with disabilities do their jobs, such as ramps and elevators so people in wheelchairs can access the work environment, and assistive technology for people with other disabilities.

Undue Hardship

The situation where the accommodations for a person with a disability would be too expensive or difficult to implement.